

official capacity as Secretary of State and Respondents County of Shasta and Clint Curtis, in his official capacity as Shasta County Clerk and Registrar of Voters do not oppose the motion.

The Petition in this matter seeks a Writ of Mandate and both injunctive and declaratory relief related to Measure B, which passed with a majority vote in the June 2, 2026, primary election. The proposed amici in this matter are all non-profit organizations with a history of advocating for voting rights.

Amici curiae, literally “friends of the court,” perform a valuable role for the judiciary precisely because they are nonparties who often have a different perspective from the principal litigants. “Amicus curiae presentations assist the court by broadening its perspective on the issues raised by the parties. Among other services, they facilitate informed judicial consideration of a wide variety of information and points of view that may bear on important legal questions.”

Connerly v. State Personnel Bd. (2006) 37 Cal. 4th 1169, 1177 quoting *Bily v. Arthur Young & Co.* (1992) 3 Cal. 4th 370, 405 fn. 14.

Amicus curiae briefs are common at the appellate level and permitted in the Court of Appeal pursuant to CRC 8.200(c). There is no corresponding rule at the trial court level. Instead, whether to grant leave to file an amicus curiae brief is left to the sound discretion of the Court. In the absence of a specific rule, the Court looks to the rules that exist for other courts. The Court notes that the proposed amici filed a motion that contains all the information required by CRC 8.200(c). The motion was made on a standard noticed timeframe. While RPI argued very strenuously that the timing of the motion was intended to prejudice RPI, the Court does not find any merit to that argument. One of two counsel being on vacation does not result in a halt to litigation, especially in a time sensitive matter such as this Petition.

RPI also argue that the proposed brief raises new issues not raised by Petitioners. The general rule is that amicus curiae must accept the issues made and propositions urged by the parties and that any additional questions presented in a brief filed by an amicus curiae will not be considered. *California Assn. for Safety Education v. Brown* (1994) 30 Cal. App. 4th 1264. It does not appear that significant new issues are raised. The Court finds that the proposed amicus brief would assist the Court in this matter. The Court exercises its discretion to grant leave to allow the filing of the proposed brief.

The motion is **GRANTED**. Proposed Amici provided a proposed Order that will be executed by the Court. The proposed brief is attached to the moving papers. The Court accepts the brief attached to this motion as appropriately “combined” with the application. (CRC 8.200(c)(4).) Pursuant to CRC 8.200(c)(6), the Court grants any party 10 court days to file an answer to the amicus brief, should they wish to do so.

TILTON PACIFIC CONSTRUCTION, INC, VS. JSK JJ INVESTMENTS, LLC

CASE NUMBER: 25CV-0208796

Tentative Ruling on Order to Show Cause Re: Sanctions: An Order to Show Cause issued on June 24, 2026 to Plaintiff Tilton Pacific Construction, Inc. and Counsel Van De Poel & Levy LLP for failure to timely serve the Complaint. Plaintiff filed a response that provides sufficient excuse for the delay and has also filed a Proof of Service of Summons. The Order to Show Cause is **DISCHARGED**. The matter will be on calendar on **Monday, October 12, 2026 at 9:00 a.m. in Department 63** for status of responsive pleading and, if appropriate, trial setting.

9:00 a.m. – Review Hearings

BAKER VS. TERRILL

CASE NUMBER: 25CV-0207907

This matter is on calendar for review regarding status of counsel. Counsel for Plaintiff was recently relieved and Plaintiff did not appear on the last court date. **An appearance is necessary on today's calendar.**

BARTON, ET AL. VS. NORTH REDDING HOSPITALITY LLC

CASE NUMBER: 25CV-0208230

This matter is on calendar for a trial setting conference. The matter is at issue. The Court designates this matter as a Plan III case and intends to set the matter for trial no later than June 29, 2027. Plaintiff has posted jury fees but Defendant has not. Defendant is granted 10 days leave to post jury fees. A failure to post jury fees in that time will be deemed a waiver of the right to a jury. The parties are ordered to meet and confer prior the hearing regarding proposed dates for trial. **An appearance is necessary on today's calendar.**

BERG VS. GRIFFIN

CASE NUMBER: 25CV-0208647

This matter is on calendar for a trial setting conference. The matter is at issue. The Court designates this matter as a Plan II case and intends to set the matter for trial no later than March 9, 2027. Neither party has posted jury fees. The parties are granted 10 days leave to post jury fees. A failure to post jury fees in that time will be deemed a waiver of the right to a jury. The parties are ordered to meet and confer prior the hearing regarding proposed dates for trial. **An appearance is necessary on today's calendar.**

CAL TREES LLC VS. MAXIMUS TREE WORKS, LLC, ET AL.

CASE NUMBER: 24CV-0205268

This matter is on calendar for review regarding status of default and default judgment, The Answers filed by Defendants Maximus Tree Works, LLC and Johnnie Morales were stricken on June 22, 2026 and Plaintiff stated that defaults would be sought. Plaintiff has not filed anything since the last hearing. The matter is continued to **Monday, September 21, 2026 at 9:00 a.m. in Department 63** for status of defaults. If Plaintiff has not gotten the matter at issue by the next hearing, Plaintiff is ordered to file a status statement explaining the delay no less than five court days prior to the hearing. **No appearance is necessary on today's calendar.**

CASHMAN, ET AL. VS. DEPTUCH, ET AL.

CASE NUMBER: 25CV-0207830

This matter is on calendar for review regarding status of responsive pleading and trial setting. The Court notes that Defendants James J. Deptuth and Amber L. Deptuth have now filed an Answer. The Deptuths also filed a Cross-Complaint that appears to name as Cross-Defendants Eugene Cashman, Deborah Cashman, and Pacific Gas & Electric Company, however, the Cross-Defendants are only listed in the body and not in the caption. No responsive pleadings have been filed as to the Cross-Complaint. Plaintiffs filed a status statement informing the Court that Plaintiff's counsel has left the firm and Plaintiffs are in the process of obtaining new counsel. The matter is continued to **Monday, November 9, 2026 at 9:00 a.m. in Department 63** for status of counsel for Plaintiffs and status of Cross-Complaint. The parties are ordered to file a status statement at least five court days prior to the hearing. **No appearance is necessary on today's calendar.**

FERGUSON VS. SANCHEZ

CASE NUMBER: 24CVG-01998

This matter is on calendar for review regarding trial setting. The previous trial date was vacated due to the unavailability of a courtroom. The Court designates this as a Plan III matter and intends to set the matter for trial no later than December 15, 2026. Plaintiff has waived the right to a jury and requested a court trial. Defendant